

AHMAD v. BAYLESS

22CV46176

DEFENDANT'S MOTION TO AMEND RFA RESPONSES

This is a personal injury action, arising from an automobile accident occurring on July 5, 2022, at the intersection of Burson Road and SR-12. Plaintiff was traveling eastbound on SR-12. Defendant was northbound on Burson, crossing plaintiff's direction of travel with the intention of completing a left turn onto westbound SR-12.

On 09/08/22, plaintiff caused to be served upon defendant a set of Requests for Admission.

On 11/02/22, defendant caused to be served upon plaintiff a verified response to the Requests for Admissions. As it relates to RFA Nos 4-7, 9, and 13-22 (that plaintiff did no wrong and was not comparatively at fault for the accident), defendant responded as follows: "Admit. Discovery and investigation are continuing."

On 11/16/22, defendant sat for a deposition, at which time he reportedly opined that plaintiff may have been driving too fast and that but for his speed defendant would have safely crossed the intersection. This came as a surprise to defense counsel, who was unaware that his client was possessed of that opinion (especially given the RFAs completed just two weeks earlier).

On 12/14/22, and despite defendant's testimony in deposition regarding a basis for comparative fault, plaintiff filed a motion for summary adjudicate concerning *all but* the First (failure to state), Fourth (litigation) and Eighth (set-off) affirmative defenses set forth in defendant's Answer filed 08/30/22. Plaintiff seeks summary adjudication of the remaining eight (8) affirmative defenses, based generally on defendant's sworn RFAs that plaintiff did no wrong and was not comparatively at fault for the accident. Plaintiff's MSA is scheduled to be heard next week (March 3).

On 01/05/23, defendant filed the pending motion for leave to revise the responses previously provided to RFA Nos 4-7, 9, and 13-22 agreeing that plaintiff did no wrong and was not comparatively at fault for the accident. For each RFA, defendant would now like to revise those sworn responses as follows: "Deny."

As a preliminary matter, "each response shall answer the substance of the requested admission, or set forth an objection to the particular request." (CCP §2033.210(b).) That answer "shall be as complete and straightforward" as possible, and consist of either (1) an admission, (2) a denial, or (3) a professed inability to do either because the information known or readily obtainable is insufficient to enable the responding party to admit or deny. Because admissions are designed to put triable issues to rest, and denials are subject to possible sanctions, it has become commonplace for lawyers to

insert “soft” admits like the one defendant offered here. (See CCP §2033.420(a); *Grace v. Mansourian* (2015) 240 Cal.App.4th 523, 529. *City of Glendale v. Marcus Cable Assocs., LLC* (2015) 235 Cal.App.4th 344, 354, 359; *Stull v. Sparrow* (2001) 92 Cal.App.4th 860, 865.) However, an admission must be “as expressed in the request itself or as reasonably and clearly qualified by the responding party.” (CCP §2033.220.) In other words, the Code does not permit a party to “admit” a matter set forth in an RFA, but then claim that “discovery and investigation are ongoing” – as if to suggest that the admit is contingent. Although plaintiff did not move to compel a further response removing the “discovery and investigation are continuing” verbiage (CCP §2033.290), this Court views the original responses as unqualified admissions.

Pursuant to CCP §2033.300, a party seeking leave of court to revise a previous admission must first demonstrate by a preponderance of the evidence that the earlier sworn admission was “the result of mistake, inadvertence, or excusable neglect.” In determining whether that occurred, the court inquires whether a reasonably prudent person might have made the same error under the same or similar circumstances. Critical to this inquiry is the reasonableness of defendant’s misconception/confusion, the diligence performed, and the justification for proceeding without caution. (See *New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1419; in accord, *Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.* (2013) 217 Cal.App.4th 1096, 1112; *Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1206; *Shapiro v. Clark* (2008) 164 Cal.App.4th 1128, 1141-1142; *Generale Bank Nederland, N.V. v. Eyes of the Beholder Ltd.* (1998) 61 Cal.App.4th 1384, 1399; *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 682-684.)

The evidence proffered by defendant and defense counsel is essentially this: defendant always felt that plaintiff might have been driving too fast but did not feel as though it was worth mentioning so never told counsel. This might show ignorance, but that is not excusable neglect – nor is it a mistake of fact. There is very little basis for concluding that the various admissions were made in error, especially as defendant *verified* the responses. Instead, it seems that the concern lies not with the truth of the discovery but rather with the impact the RFAs have on the pending MSA. However, since defendant offered his opinions of plaintiff’s wrongdoing in deposition four weeks *before* plaintiff’s MSA was filed, the degree of “prejudice” to plaintiff is not substantial in light of this Court’s options for redress. As there is policy favoring accuracy in evidence and bona fide revisions to RFA responses, denial of a motion for relief “is limited to circumstances where it is clear that the mistake, inadvertence, or neglect was inexcusable, or where it is clear that the withdrawal or amendment would substantially prejudice the party who obtained the admission in maintaining that party’s action or defense on the merits.” (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1420.) Defendant has shown enough here to meet the burden of proof, albeit barely.

When a motion to revise a prior RFA admission is granted, the trial court is empowered with wide latitude to remedy the condition and level the playing field. As set forth in §2033.300(c), a trial court may allow the plaintiff here “to pursue additional discovery

related to the matter” at defendant’s expense, which may include reasonable attorney fees associated therewith. (See *Rhule v. Wavefront Tech., Inc.* (2017) 8 Cal.App.5th 1223, 1227-1228.) To that end, defendant’s motion for leave to amend his responses to RFA Nos 4-7, 9, and 13-22 from “Admit. Discovery and investigation are continuing.” to “Deny.” is GRANTED. Defendant shall, within 5 calendar days, serve a revised verified RFA response consistent herewith, as well as a complete, substantive, objection-free, verified response to Form Interrogatory 17.1. Defendant’s original responses to both the RFA and FI 17.1 may still be used as impeachment (see *Jahn v. Brickey* (1985) 168 Cal.App.3d 399, 405), and his new RFA responses may be subject to a motion for prove-up costs (CCP §2033.420). Plaintiff is entitled to retake defendant’s deposition, limited to the topics raised in the revised RFA and FI 17.1 responses, and defendant shall bear all costs associated with at deposition (including court reporter and plaintiff’s counsel’s time in deposition). Moreover, if defendant shall hereinafter designate an expert witness to testify regarding plaintiff’s “fault” for the accident, the defense shall cover the cost of that deposition as well (expert time plus court reporter plus plaintiff’s counsel’s time).

As for plaintiff’s MSA, despite defendant’s contention, it is not clear to this Court that the MSA is necessarily moot *in toto* since plaintiff relied on his own evidence and other written discovery responses. However, in an abundance of caution, the MSA shall be continued at least four weeks – to a date agreeable by the parties – and plaintiff shall be entitled to raise in the reply papers information newly obtained as a result of today’s order. Alternatively, if plaintiff elects to withdraw the MSA altogether based on today’s order, this Court will entertain briefing on the question of whether §2033.300(c) goes far enough to reimburse a party for a MSA rendered moot when filed in reliance on original RFA responses.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity herewith.

BUTLER v. COMMERCIAL SITE IMPROVEMENTS

22CV46383

DEFENDANT'S DEMURRER TO COMPLAINT

This appears to be a wage-hour dispute. Before the Court is a defense demurrer to the operative Complaint. The demurrer is deemed off-calendar, without prejudice, for the following various reasons.

First, pursuant to Calaveras County Superior Court Local Rule 3.3.7, (effective since 1/1/18) "all matters noticed for the Law & Motion calendar shall include" specified language in the Notice of Motion, and "failure to include this language in the notice may be a basis for the Court to deny the motion." Defendant did not include this required language.

Second, it is not clear from defendant's general appearance what its legal status is. A properly-formed company/entity cannot appear "in pro per" in litigation in a court of general jurisdiction, and cannot appear through an officer or agent who is not an attorney. (*Merco Constr. Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 730; *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1149; *Caressa Camille, Inc. v. Alcoholic Beverage Control Appeals Bd.* (2002) 99 Cal.App.4th 1094, 1101; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284; *Ziegler v. Nickel* (1998) 64 Cal.App.4th 545, 547.) If Commercial Site Improvements is simply a dba of Ms. Batch, the general appearance must so state. (See *Ball v. Steadfast-BLK* (2011) 196 Cal.App.4th 694, 701; *Pinkerton's, Inc. v. Superior Court* (1996) 49 Cal.App.4th 1342, 1348.)

Third, every demurrer must include a declaration attesting to a good faith effort to meet and confer with the pleader beforehand (CCP §431.40), and the papers on file here do not include any such declaration.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order pursuant to Rule of Court 3.1312 is required.